



General Assembly

February Session, 2026

Raised Bill No. 5510

LCO No. 2306



Referred to Committee on PUBLIC HEALTH

Introduced by:
(PH)

***AN ACT CONCERNING THE DEPARTMENT OF PUBLIC HEALTH'S
RECOMMENDATIONS REGARDING UNLICENSED INSTITUTIONS
AND PRACTICES.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 19a-502 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) Any person establishing, conducting, managing or operating any
4 institution without the license required under the provisions of [sections
5 19a-490 to 19a-503, inclusive, or owning real property or improvements
6 upon or within which such an institution is established, conducted,
7 managed or operated,] this chapter or without the certificate required
8 under the provisions of section [19a-491, shall be fined not more than
9 one hundred dollars for each offense, and each day of a continuing
10 violation after conviction shall be considered a separate offense] 19a-561
11 shall be guilty of a class D felony and fined not more than five thousand
12 dollars for each day of continuing action in violation of this chapter or
13 section 19a-561.

14 (b) Any person owning real property or improvements upon or

15 within which an institution is established, conducted, managed or
16 operated without the license required under this chapter or without the
17 certificate required under section 19a-561 shall be fined not more than
18 one hundred dollars for each offense and each day of a continuing
19 violation after conviction shall be considered a separate offense.

20 (c) The penalty provisions of this [subsection] section shall not apply
21 to (1) any financial institution regulated by any state or federal agency
22 or body, which financial institution has succeeded to the title of the
23 premises by mortgage foreclosure and the operator, if any, continues to
24 occupy such property, or (2) a person's failure to apply for a renewal of
25 a license during the thirty days after its expiration.

26 [(b)] (d) If any person conducting, managing or operating any
27 nursing home facility, as defined in section 19a-521, or residential care
28 home, as defined in section 19a-521, fails to maintain or make available
29 the financial information, data or records required under subsection (d)
30 of section 19a-498, such person's license as a nursing home facility or
31 residential care home administrator may be revoked or suspended in
32 accordance with section 19a-517 or the license of such nursing home
33 facility or residential care home may be revoked or suspended in the
34 manner provided in section 19a-494, or both.

35 Sec. 2. Section 19a-503 of the general statutes is repealed and the
36 following is substituted in lieu thereof (*Effective October 1, 2026*):

37 (a) Notwithstanding the existence or pursuit of any other remedy, the
38 Department of Public Health may, in the manner provided by law and
39 upon the advice of the Attorney General, conduct an investigation and
40 maintain an action in the name of the state for injunction or other
41 process against any person or governmental unit to restrain or prevent
42 the establishment, conduct, management or operation of an institution
43 or nursing facility management services, without a license or certificate
44 under this chapter.

45 (b) The commissioner may, after a hearing held in accordance with

46 chapter 54, impose a civil penalty on any person establishing,
47 conducting, managing or operating any institution without the license
48 required under this chapter or without the certificate required under
49 section 19a-561. The amount of any such civil penalty shall not exceed
50 twenty-five thousand dollars for each day such person is in violation of
51 this chapter or section 19a-561.

52 Sec. 3. Section 19a-11 of the general statutes is repealed and the
53 following is substituted in lieu thereof (*Effective October 1, 2026*):

54 Any board or commission listed in subsection (b) of section 19a-14 or
55 the Department of Public Health, with respect to professions under its
56 jurisdiction that have no board or commission, may, in its discretion,
57 issue [an appropriate] summary order to any person found to be
58 violating an applicable statute or regulation, providing for the
59 immediate discontinuance of the violation that poses an imminent risk
60 to public health, safety or welfare, pending proceedings to determine
61 whether to issue a cease and desist order. In addition to a cease and
62 desist order, such board or commission or the department may, after a
63 hearing held in accordance with chapter 54, impose a civil penalty not
64 to exceed twenty-five thousand dollars for the provision of services
65 without a license or certificate in violation of the provisions of this title.
66 For the purposes of this section, each day of the provision of any such
67 services shall be grounds for such a penalty. The board or commission
68 may, through the Attorney General, petition the superior court for the
69 judicial district wherein the violation occurred, or wherein the person
70 committing the violation resides or transacts business, for the
71 enforcement of any order issued by it and for appropriate temporary
72 relief or a restraining order. Such board or commission shall certify and
73 file in such court a transcript of the entire record of the hearing or
74 hearings, including all testimony upon which such order was made and
75 the findings and orders made by such board or commission. The court
76 may grant such relief by injunction or otherwise, including temporary
77 relief, as it deems equitable and may make and enter a decree enforcing,
78 modifying and enforcing as so modified, or setting aside, in whole or in

79 part, any order of the board or commission.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	19a-502
Sec. 2	<i>October 1, 2026</i>	19a-503
Sec. 3	<i>October 1, 2026</i>	19a-11

Statement of Purpose:

To establish penalties for the unlicensed operation of a health care institution and the unlicensed practice of certain medical professions.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]